

HOUSE No. 5018

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, February 5, 2026.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1141) of Daniel M. Donahue relative to insurance coverage to expand access to acute hospital at home services, reports recommending that the accompanying bill (House, No. 5018) ought to pass.

For the committee,

JAMES M. MURPHY.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act increasing access to acute hospital at home services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting at the end
2 thereof the following new section:-

3 Section 35. The commission shall provide to any active or retired employee of the
4 commonwealth who is insured under the group insurance commission coverage and
5 reimbursement on par with in-person services for the cost of hospital at home services provided
6 by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute
7 Hospital Care at Home Program.

8 SECTION 2. Chapter 175 of the General Laws is hereby amended by inserting at the end
9 thereof the following new section:-

10 Section 231. An individual policy of accident and sickness insurance issued under section
11 108 that provides hospital expense and surgical expense insurance and any group blanket or
12 general policy of accident and sickness insurance issued under section 110 that provides hospital
13 expense and surgical expense insurance, which is issued or renewed within or without the

commonwealth, shall provide coverage and reimbursement on par with in-person services for the cost of hospital at home services provided by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute Hospital Care at Home Program.

SECTION 3. Chapter 176A of the General Laws is hereby amended by inserting at the end thereof the following new section:-

Section 39. A contract between a subscriber and the corporation under an individual or group hospital service plan which provides hospital expense and surgical expense insurance, except contracts providing supplemental coverage to Medicare or other governmental programs, delivered, issued or renewed by agreement between the insurer and the policyholder, within or without the commonwealth, shall provide coverage and reimbursement on par with in-person services for the cost of hospital at home services provided by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute Hospital Care at Home Program.

SECTION 4. Chapter 176B of the General Laws is hereby amended by inserting at the end thereof the following new section:-

Section 26. Any subscription certificate under an individual or group medical service agreement, except certificates which provide supplemental coverage to medicare or other governmental programs, which is delivered, issued for delivery or renewed in the commonwealth, shall provide coverage and reimbursement on par with in-person services for the cost of hospital at home services provided by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute Hospital Care at Home Program.

SECTION 5. Chapter 176G of the General Laws is hereby amended by inserting at the end thereof the following new section:-

36 Section 34. Individual and group health maintenance contracts shall provide coverage and
37 reimbursement on par with on-person services for the cost of hospital at home services provided
38 by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute
39 Hospital Care at Home Program.

40 SECTION 6. Chapter 176I of the General Laws is hereby amended by inserting at the end
41 thereof the following new section:-

42 Section 14. An organization entering into a preferred provider contract shall provide
43 coverage and reimbursement for the cost of hospital at home services provided by an acute care
44 hospital participating in the Centers for Medicare and Medicaid Services Acute Hospital Care at
45 Home Program.